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CLARITY Update: Procedural vote set for Sept 15th

Quick take: Just when we thought we could take a break on CLARITY, there was an update over the weekend with the Senate set to take a procedural vote to proceed on Sept 15th. While DC insiders are much less optimistic about the Bill eventually passing, we keep noting that it hasn't yet despite many opportunities to do so, and despite all the rhetoric, legislators are keen to protect consumers, keep the US at the forefront of the industry, leverage stablecoins to maintain the (eventual digital) dollar as the global reserve currency and drive demand for US treasuries, and to appease the now very powerful crypto lobby with midterms coming up fast. The ethics provision in the Bill remains the biggest item of disagreement between both caucuses and the White House, so this and the yield issue (which is coming back a bit due to intense lobbying efforts from the banks) is where the focus will be over the next several weeks.

Will Senate Majority Leader Thune bring the vote? Some believe he won't do that if he doesn't have the required 60 votes to invoke cloture, while others believe he wants Dems to be on record voting against it for a variety of reasons, most notably to showcase that position to the crypto lobby with key fundraising months ahead of the November midterms.

Interesting development on CCCA: While we haven't changed our perspective on CCCA having incredibly low odds of ever passing on its own, EVR's Matt Aks noted that Sens Lummis (R-WY) and Moreno (R-OH), two of the biggest proponents of CLARITY, quietly added themselves as co-sponsors on the CCCA in the past few days. It is being viewed by some as a "warning shot" to the banking industry for trying to re-open the stablecoin yield compromise that came out of the Banking Committee. While stocks may react to this news (understandable but likely not justified), we reiterate our view that this news does not change the outlook of it passing and categorize it as typical "political theater" in DC.

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